

STATE OF NEW YORK

5056--A

2025-2026 Regular Sessions

IN SENATE

February 18, 2025

Introduced by Sen. RIVERA -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring the department of health examine heat vulnerability and heat-related deaths

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public health law is amended by adding a new section
2 212 to read as follows:

3 § 212. Heat vulnerability and heat-related deaths. 1. For the purposes
4 of this section, the following terms shall have the following meanings:

5 (a) "Heat-exacerbated death" means a death caused by natural causes
6 estimated by the department to have resulted from an existing health
7 condition exacerbated by extreme, or near extreme, heat.

8 (i) Such estimation shall be determined using one or more statistical
9 models by the department.

10 (ii) At least one such model used by the department shall utilize
11 sensitive statistical methods that assess daily temperature as a contin-
12 uous variable in relation to daily mortality to estimate heat-exacerbat-
13 ed deaths, without the use of a qualifying temperature threshold.

14 (iii) One such model shall utilize sensitive statistical methods that
15 assess daily temperature as a continuous variable in relation to daily
16 mortality to estimate heat-exacerbated deaths, without the use of a
17 qualifying temperature threshold.

18 (b) "Heat stress death" means a death directly attributed to heat on a
19 death certificate, or with an underlying or contributing cause of (i)
20 excessive natural heat or (ii) the effects of heat and light, as such
21 conditions are defined in the most recent edition of the International
22 Classification of Diseases, published by the World Health Organization.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00862-03-5

1 (c) "Heat vulnerability" means the estimated risk of heat stress
2 deaths and heat exacerbated deaths occurring in a geographical area
3 based on social and environmental factors identified by the department.

4 2. The department shall issue an annual report examining heat vulner-
5 ability and heat-related deaths in the state. Such report shall include
6 but not be limited to:

7 (a) the number of heat stress deaths in the most recent year avail-
8 able;

9 (b) the estimation of past heat-exacerbated deaths based on the most
10 recent available years of data and the smallest interval of time that
11 yields a reliable estimate;

12 (c) a description of the relative heat vulnerability of each New York
13 county;

14 (d) a description of reported data;

15 (e) a description of social and environmental factors assessed by the
16 department to determine heat vulnerability;

17 (f) a description of methods used to derive heat vulnerability and
18 estimate heat-exacerbated deaths; and

19 (g) the aggregate demographic information of heat stress deaths,
20 including, but not limited to, the age, gender, county and the race or
21 ethnicity of the decedents.

22 3. No report required by this section shall contain personal identify-
23 ing information.

24 4. The commissioner shall promulgate rules and regulations as may be
25 necessary to implement the provisions of this section.

26 5. The commissioner may enter into an agreement with the city of New
27 York whereby the city department of health and mental hygiene provides
28 to the state department of health any data and analysis related to such
29 report.

30 6. Such report shall be submitted to the temporary president of the
31 senate, the speaker of the assembly and the governor no later than June
32 fifteenth, two thousand twenty-six and annually thereafter. Such report
33 shall be conspicuously posted on the department's website.

34 7. Nothing in this section shall prevent the city of New York from
35 establishing, without an agreement with the commissioner, an annual
36 report examining heat vulnerability and heat related deaths occurring
37 within the city of New York.

38 § 2. This act shall take effect immediately.